

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 06/17/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why.** Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearings for Lines 5 and 17. This CMC is **continued** to trail the hearing on Summary Judgment / Summary Adjudication calendared for July 22, 2026.

2. 9:00 AM CASE NUMBER: C25-00609

CASE NAME: VICKI RUDD VS. THERESA CALLEJAS

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 11. If the tentative ruling for Line 11 is not contested, this CMC is continued to September 11, 2026 at 8:30 a.m. in Department 16.

3. 9:00 AM CASE NUMBER: C25-01588

CASE NAME: MUKESH ADVANI VS. NIARE FEASTER

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 12. Since Line 12 is not opposed, this CMC is **continued** to trail the hearing on the Motion to Quash Service of Summons and Complaint to be heard on November 25, 2026 at 9:00 a.m. No appearance is required on June 17, 2026.

4. 9:00 AM CASE NUMBER: C25-01899

CASE NAME: BRENTWOOD SUNSET 2010, LLC VS. VIRGINIA PETERSON

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 14. If the tentative ruling for Line 11 is not contested, this CMC is continued to September 11, 2026 at 8:30 a.m. in Department 16.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00009

CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.

*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MARK D. ROSENBERG, ESQ.

FILED BY: DALY, MICHELLE

TENTATIVE RULING:

Summary

Plaintiff Michelle Daly's ("Plaintiff") counsel, Law Offices of Mark D. Rosenberg ("Withdrawing Counsel") filed a Motion to Be Relieved as Counsel for Plaintiff on February 11, 2026 ("Motion"). The Motion is **granted** as set forth herein.

Background

In this case, Plaintiff alleges medical malpractice against Defendant Michael Vistnes, M.D. arising out of facial laser treatment. Withdrawing Counsel filed this Motion, supported by a declaration claiming that attorney-client relationship has suffered an "irreparable breakdown" in communication and trust. Withdrawing Counsel also represents that Plaintiff has retained "contract counsel," which presents a conflict. Withdrawing Counsel can no longer represent Plaintiff. Plaintiff refused to retain